



Article: 32

Warrant Article Title:

HOME RULE LEGISLATION / PROHIBIT FIRST GENERATION ANTICOAGULANT RODENTICIDES (FGARS) IN ARLINGTON

Warrant Article Text:

To see if the Town will vote to submit a Home Rule petition to the state legislature requesting permission for the town of Arlington to ban the use of First-Generation Anticoagulant Rodenticides (FGARs)--warfarin, diphacinone, and chlorophacinone—in Arlington borders (including on private properties); or take any action related thereto.

Requested By:

Laura Kiesel and ten registered voters

Report Excerpt:

Vote and comment to Town Meeting - Favorable Action (4-0)
Mr. Helmuth recused himself.

The Select Board voted unanimously (Mr. Helmuth recused himself) to recommend favorable action on this warrant article to file home rule legislation seeking to regulate and ban the use in town by pesticide applicators of First-Generation Anticoagulant Rodenticides (FGARs). The Board heard from the article's proponent, who explained the purpose of the proposed legislation as a means of protecting Arlington's wildlife. It was noted by Board members that the Board has consistently supported efforts to limit the use of FGARs and Second-Generation Anticoagulant Rodenticides (SGARs) in Arlington.

Last year, following an affirmative vote of Town Meeting, home rule legislation was refiled to regulate and ban SGARs in

Arlington, legislation that was previously filed with the Legislature in 2022 pursuant to prior Town Meeting action. That bill, H4571, remains pending in the legislature.

Vote Language:

That the Town does hereby request and authorize the Select Board to file Home Rule Legislation to provide substantially as follows:

**“AN ACT AUTHORIZING THE TOWN OF ARLINGTON TO
PROHIBIT USE OF FIRST GENERATION ANTI-COAGULANT
RODENTICIDES”**

Be it enacted by the Senate and House of Representatives in the General Court assembled, and by the authority of the same, as follow:

Section 1. Notwithstanding chapter 132B of the General Laws or any other general or special law to the contrary, the town of Arlington may regulate through local bylaw or board of health regulation or ordinance the use of first generation anti-coagulant rodenticides, including, but not limited to warfarin, diphacinone, and chlorophacinone, within the town of Arlington, including prohibiting the use of such pesticides by licensed commercial applicators as defined in 333 C.M.R. 10.00

Section 2. This Act will take effect upon its passage.”

[Select Board Report](#)